

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3244

By: Bashore

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 425, as amended by Section 370, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 425), which relates to the pattern of criminal offenses; modifying elements of certain unlawful act; expanding scope of certain defined term; amending 21 O.S. 2021, Section 843.4, as amended by Section 194, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.4), which relates to the exploitation of elderly or disabled persons; making certain acts unlawful; providing penalties; defining terms; amending 21 O.S. 2021, Section 1533.1, as amended by Section 423, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1533.1), which relates to identity theft; expanding scope of crime to include specific identification information; providing elements for aggravated identity theft; making certain acts unlawful; providing penalties for subsequent convictions; providing penalties for aggravated identity theft; authorizing the use of identity theft task force officers; providing for the dissemination of certain identification information; defining terms; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 425, as amended by Section 370, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 425), is amended to read as follows:

1 Section 425. A. Any person who engages in a pattern of
2 criminal offenses ~~in~~:

3 1. In two or more counties in this state;

4 2. In two or more municipalities in this state;

5 3. In an unincorporated portion of a county and in a
6 municipality within the same county;

7 4. When one of the offenses was committed outside this state
8 and the other was committed within this state;

9 5. In circumstances when the initial act was committed online
10 through cyberspace, by a computer application, social media,
11 artificial intelligence, or by a cellular network, regardless of
12 location, and an additional act was committed inside this state; or
13 ~~who~~

14 6. Who attempts or conspires with others to engage in a pattern
15 of criminal offenses,
16 shall, upon conviction, be guilty of a Class D1 felony offense
17 punishable by imprisonment as provided for in subsections B through
18 F of Section 20N of this title, or by a fine in an amount not more
19 than Twenty-five Thousand Dollars (\$25,000.00), or by both such fine
20 and imprisonment. Such punishment shall be in addition to any
21 penalty imposed for any offense involved in the pattern of criminal
22 offenses. Double jeopardy shall attach upon conviction.

23 B. For purposes of this ~~act~~ section, "pattern of criminal
24 offenses" means:

1 1. Two or more criminal offenses are committed that are part of
2 the same plan, scheme, or adventure; or

3 2. A sequence of two or more of the same criminal offenses are
4 committed and are not separated by an interval of more than thirty
5 (30) days between the first and second offense, the second and
6 third, and so on; or

7 3. Two or more criminal offenses are committed, each proceeding
8 from or having as an antecedent element a single prior incident or
9 pattern of fraud, robbery, burglary, theft, identity theft, receipt
10 of stolen property, false personation, false pretenses, obtaining
11 property by trick or deception, taking a credit or debit card
12 without consent, organized retail theft, or the making, transferring
13 or receiving of a false or fraudulent identification card.

14 C. Jurisdiction and venue for a pattern of criminal offenses
15 occurring in multiple counties in this state shall be determined as
16 provided in Section ~~4~~ 125.1 of ~~this act~~ Title 22 of the Oklahoma
17 Statutes.

18 SECTION 2. AMENDATORY 21 O.S. 2021, Section 843.4, as
19 amended by Section 194, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
20 2025, Section 843.4), is amended to read as follows:

21 Section 843.4. A. As used in this section, "exploitation of an
22 elderly person or disabled adult" means:

23 1. Knowingly, by deception or intimidation, obtaining or using,
24 or endeavoring to obtain or use, an elderly person's or disabled

adult's funds, assets, or property with the intent to temporarily or permanently deprive the elderly person or disabled adult of the use, benefit, or possession of the funds, assets, or property, or to benefit someone other than the elderly person or disabled adult, by a person who:

a. stands in a position of trust and confidence with the elderly person or disabled adult, or

b. has a business relationship with the elderly person or disabled adult ~~7~~ or

2. Obtaining or using, endeavoring to obtain or use, or conspiring with another to obtain or use an elderly person's or disabled adult's funds, assets, or property with the intent to temporarily or permanently deprive the elderly person or disabled adult of the use, benefit, or possession of the funds, assets, or property, or to benefit someone other than the elderly person or disabled adult, by a person who knows or reasonably should know that the elderly person or disabled adult lacks the capacity to consent.

B. 1. If the funds, assets, or property involved in the exploitation of the elderly person or disabled adult are valued at One Hundred Thousand Dollars (\$100,000.00) or more, the violator commits a Class C1 felony offense punishable by imprisonment as provided for in subsections B through E of Section 20L of this title, and by a fine in an amount not exceeding Ten Thousand Dollars (\$10,000.00).

1 2. If the funds, assets, or property involved in the
2 exploitation of the elderly person or disabled adult are valued at
3 less than One Hundred Thousand Dollars (\$100,000.00), the violator
4 commits a Class C2 felony offense punishable by imprisonment as
5 provided for in subsections B through F of Section 20M of this title
6 and by a fine in an amount not exceeding Ten Thousand Dollars
7 (\$10,000.00).

8 C. It shall be unlawful for a person to use coercion,
9 deception, enticement, intimidation, bartering, recruiting, or other
10 means, to exploit another who has a mental illness, is vulnerable,
11 homeless, intellectually or developmentally disabled, elderly, a
12 user of drugs or alcohol, a minor, or whose legal status in this
13 country may be unlawful, to engage in any crime. Any person
14 convicted of violating the provisions of this section shall be
15 guilty of a felony, punishable by imprisonment in the custody of the
16 Department of Corrections for a term not exceeding ten (10) years,
17 or by a fine not exceeding Ten Thousand Dollars (\$10,000.00), or by
18 both such fine and imprisonment.

19 D. It shall be unlawful for a person to engage in a pattern of
20 exploitation by coercion, deception, enticement, intimidation,
21 bartering, recruiting, or other means, of another who has a mental
22 illness, is vulnerable, homeless, intellectually or developmentally
23 disabled, elderly, a user of drugs or alcohol, a minor, or whose
24

1 legal status in this country may be unlawful, to engage in any
2 crime.

3 1. A pattern of exploitation shall be established if:

4 a. a person has a previous conviction under any of the
5 provisions of this section,

6 b. a person has a previous conviction for contributing to
7 the delinquency of a minor pursuant to Section 856 of
8 this title,

9 c. a person has a previous conviction for abuse, neglect,
10 exploitation, or sexual abuse of a child pursuant to
11 Section 843.5 of this title, or

12 d. a person participated in circumstances in which the
13 exploited person committed criminal acts in violation
14 of Section 425 of this title.

15 2. Any person who violates the provisions of this subsection
16 shall be guilty of a felony, punishable by imprisonment in the
17 custody of the Department of Corrections for a term not exceeding
18 twenty (20) years, or by a fine not exceeding Twenty Thousand
19 Dollars (\$20,000.00), or by both such fine and imprisonment.

20 E. For purposes of this section, ~~"elderly person":~~

21 1. "Elderly person" means any person sixty-two (62) years of
22 age or older;

1 2. "Exploited" means any person who is deceived, enticed,
2 intimidated, recruited, bartered with, or in any other way
3 convinced, lured, or manipulated into engaging in any crime;

4 3. "Homeless individual" shall have the same meaning as such
5 term is defined in paragraph 2 of subsection A of Section 2900.1 of
6 Title 74 of the Oklahoma Statutes;

7 4. "Mental illness" shall have the same meaning as such term is
8 defined in Section 1-103 of Title 43A of the Oklahoma Statutes; and

9 5. "Minor" means any person under twenty-one (21) years of age.

10 SECTION 3. AMENDATORY 21 O.S. 2021, Section 1533.1, as
11 amended by Section 423, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
12 2025, Section 1533.1), is amended to read as follows:

13 Section 1533.1. A. It is unlawful for any person to willfully
14 and with fraudulent intent obtain or be in possession of the name,
15 address,:

16 1. Name;

17 2. Address;

18 3. Social Security number, ~~date~~;

19 4. Date of birth, ~~place~~;

20 5. Email address;

21 6. Telephone number;

22 7. Place of business or employment, ~~debit~~;

23 8. Debit, credit or account numbers, ~~driver~~;

24 9. Yet-to-be-issued debit, credit, or account number;

- 1 10. Security code;
- 2 11. Personal identification number (PIN);
- 3 12. Retirement account number;
- 4 13. Check, checkbook, or deposit number;
- 5 14. Preapproved credit card or credit card number;
- 6 15. Logo of a financial institution;
- 7 16. Unique peer-to-peer payment identifier, login, or password;
- 8 17. Usernames, passwords, or username and password combinations
9 for any account or Internet-based platform, including a social media
10 account or cryptocurrency account;
- 11 18. Answers to security questions for an account;
- 12 19. Internet Protocol (IP) address;
- 13 20. Receipts or documents depicting full or partial debit or
14 credit card numbers;
- 15 21. Digital credit card or debit card or the full or partial
16 digital credit card or debit card number;
- 17 22. Any bank record or document;
- 18 23. A unique customer identifying number;
- 19 24. Digital wallet or digital key including a private key;
- 20 25. Mortgage document, deed, or other unique mortgage number or
21 information;
- 22 26. Credit history or credit score;
- 23 27. Driver license or driver license number;
- 24

1 28. Temporarily issued driver license or temporarily issued
2 driver license number;

3 29. Identification card or identification card number;

4 30. Tribal card or tribal card number;

5 31. Voter registration card or information;

6 32. Medical marijuana card or medical marijuana card number;

7 33. Casino card or casino card number;

8 34. Employment or school access card or number;

9 35. Government access card or number;

10 36. Vehicle identification number;

11 37. Vehicle license plate or vehicle license plate number;

12 38. Unique identifying number of an auto dealer;

13 39. Turnpike account information or number;

14 40. Insurance policy number;

15 41. Title of a vehicle;

16 42. International Mobile Subscriber Identity (IMSI) number or
17 IMSI information;

18 43. International Mobile Equipment Identifier (IMEI) or IMEI
19 information;

20 44. Subscriber Identity Module (SIM) or SIM information;

21 45. A frequency or signal transmitted by a motor vehicle;

22 46. Any unique government-issued identification number
23 including identification numbers issued to motor carriers, persons
24

1 employed in the trades, or medical, cosmetology, or dental license
2 certification or license numbers;

3 47. Government benefits number or government benefits card;

4 48. Tax documents or information contained in such documents;

5 49. Employer identification number (EIN);

6 50. Passport;

7 51. Notary stamp;

8 52. Medical document;

9 53. Biometric data;

10 54. Voice;

11 55. Fingerprints or footprints;

12 56. Retinal scan;

13 57. Deoxyribonucleic acid (DNA) or other biological
14 characteristic;

15 58. Unique medical identification numbers or medical history
16 information;

17 59. Military document containing any type of personal or
18 sensitive military identification numbers or information;

19 60. Opened or unopened mail not addressed to the person
20 possessing it; or any

21 61. Any other ~~personal~~ identifying digital, biological, or
22 physical information that poses a safety, security, or fraud risk to
23 the identity or assets of another person, business, or company,
24 whether the information is in its physical form or noted in some

1 other means, including digitally, by photograph, or manually noted
2 by other methods, of a person, living or dead, or of a business or
3 company,
4 with intent to use, sell or allow any other person to use or sell
5 such personal identifying information or business or company
6 information, or to use the information to retain any item of value,
7 or to obtain or attempt to obtain money or anything of value,
8 credit, loans, new accounts, monetary reimbursements, goods,
9 merchandise, gift cards, property or, service, or any benefit in the
10 name of the other person, business, or company without the knowledge
11 or consent of that person, business, or company. Each article of
12 personal identifying information or business or company information
13 shall constitute a separate offense. The method or means of
14 acquiring any money, property, or thing of value shall constitute a
15 separate offense.

16 B. The possession of five or more articles of personal
17 identifying information, as provided for in paragraphs 1 through 61
18 of subsection A of this section, without the consent of the owner
19 and each article being of a different person, business, or company,
20 shall constitute aggravated identity theft. There shall be a
21 rebuttable presumption that the person in possession of the personal
22 identifying information is possessing such identifying information
23 with the intent to defraud.

1 C. It shall be unlawful for any person, business, or company,
2 to willfully and with fraudulent intent:

3 1. Create, use, present, display, or build a physical, digital,
4 or online profile as a person, business, company, or other entity or
5 use a stolen or synthetic identity to purport to be the same; or

6 2. Use a logo, phone number, or other common marking or
7 letterhead of a business, company, or other entity, with the
8 consequence of false representation of authenticity,
9 to acquire a license, money, new account, real or digital property,
10 merchandise, or anything of value from a person, retailer, financial
11 institution, government entity, business, or company.

12 D. Any person utilizing an electronic device, including, but
13 not limited to, a cellular device, Voice over Internet Protocol,
14 computer, computer network, artificial intelligence (AI) technology,
15 skimming device, peer-to-peer payment applications or other digital
16 or financial transferring methods, social media, or email, to
17 accomplish any violation of this section shall, in addition to the
18 penalties imposed for identity theft as provided for in this
19 section, be subject to the provisions of Section 1958 of this title.

20 E. It is unlawful for any person to use with fraudulent intent
21 the personal identity of another person, living or dead, or any
22 information relating to the personal identity of another person,
23 living or dead, to obtain or attempt to obtain credit or anything of
24 value.

1 ~~C.~~ F. It is unlawful for any person with fraudulent intent to
2 lend, sell, or otherwise offer the use of such person's own name,
3 address, Social Security number, date of birth or any other personal
4 identifying information or document to any other person with the
5 intent to allow such other person to use the personal identifying
6 information or document to obtain or attempt to obtain any
7 identifying document in the name of such other person.

8 ~~D.~~ G. It is unlawful for any person to willfully create,
9 modify, alter or change any personal identifying information of
10 another person with fraudulent intent to obtain any money, credit,
11 goods, property, service or any benefit or thing of value, or to
12 control, use, waste, hinder or encumber another person's credit,
13 accounts, goods, property, title, interests, benefits or
14 entitlements without the consent of that person.

15 ~~E.~~ H. Any person convicted of violating any provision of this
16 section shall be guilty of identity theft. ~~Any person who violates~~
17 ~~the provisions of subsection A, B or D of this section shall, upon~~
18 and shall be punished as follows:

19 1. Upon a first conviction, the person shall be guilty of a
20 Class D1 felony offense punishable by imprisonment as provided for
21 in subsections B through F of Section 20N of this title, or a fine
22 not to exceed One Hundred Thousand Dollars (\$100,000.00), or by both
23 such fine and imprisonment. ~~Any person who violates the provisions~~
24

1 ~~of subsection A, B or D of this section, and the victim is an~~
2 ~~individual who is less than eighteen (18) years of age, shall, upon;~~

3 2. Upon a second conviction, or if the person has in his or her
4 possession the personal identifying information of a minor or
5 elderly person, the person shall be guilty of a Class D1 felony
6 offense punishable by imprisonment as provided for in subsections B
7 through F of Section 20N of this title, or a fine not to exceed One
8 Hundred Thousand Dollars (\$100,000.00), or by both such fine and
9 imprisonment. ~~Any person who violates the provisions of subsection~~
10 ~~C of this section shall, upon; and~~

11 3. Upon a third or subsequent conviction, the person shall be
12 guilty of a ~~misdemeanor~~ felony punishable by imprisonment in the
13 county jail custody of the Department of Corrections for a term of
14 not to exceed one (1) year, or a fine not to exceed One Hundred
15 Thousand Dollars (\$100,000.00), or by both such fine and
16 imprisonment less than ten (10) years nor more than fifteen (15)
17 years.

18 Restitution to the victim may be ordered in addition to any
19 criminal penalty imposed by the court. The victim of identity theft
20 may bring a civil action for damages against any person
21 participating in furthering the crime or attempted crime of identity
22 theft.

23 I. Any person in possession of the personal identifying
24 information of five or more victims shall be deemed to have

1 committed aggravated identity theft. Any person convicted of
2 aggravated identity theft shall be guilty of a felony punishable by
3 imprisonment in the custody of the Department of Corrections for a
4 term of not less than ten (10) years nor more than fifteen (15)
5 years.

6 J. Law enforcement agencies may employ, either directly or
7 through memorandums of understanding or cross-deputization
8 agreements, persons to serve as identity theft task force officers
9 whose primary responsibility shall be to prevent, respond to, and
10 investigate criminal violations related to identity theft.

11 K. Law enforcement officers may disseminate copies of Oklahoma
12 driver licenses, identification cards, or other state-issued
13 photographs of suspects or victims to fraud investigators or
14 similarly acting employees at banks, credit unions, loan businesses,
15 mortgage companies, any other financial institutions, issuers of
16 credit cards, or others who are assisting with a fraud investigation
17 related to a violation provided for in this section.

18 L. For purposes of this section:

19 1. "Elderly person" means any individual sixty-two (62) years
20 of age or older;

21 2. "Minor" means any individual under twenty-one (21) years of
22 age; and

23 3. "Synthetic identity" means:
24

- 1 a. the combination of stolen, lost, or misrepresented
2 information, or other unique or personal identifying
3 information, with other authentic or invented
4 information such as false names, false dates of birth,
5 or false addresses, or
6 b. fabricated information used to represent a person,
7 business, or company but whose identity cannot be
8 reasonably confirmed.

9 SECTION 4. This act shall become effective November 1, 2026.

10
11 60-2-15386 GRS 01/10/26
12
13
14
15
16
17
18
19
20
21
22
23
24